

KNOXVILLE AREA DSA

Code on Election Procedures

PROPOSED, NOT YET ADOPTED

Knoxville Area Chapter of the Democratic Socialists of America

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“The Knoxville Area DSA seeks to facilitate the transition to a truly democratic and socialist society in which the means and resources of production are democratically and socially controlled.”

STATEMENT OF PURPOSE

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Section 1. Purpose and Authority

(a) **Adoption and reservation.** This Code is adopted under Article XVIII, Section 1(b) of the bylaws of the Chapter. It is the Code-only reserved subject named at Article XVIII, Section 4(a): the Code on Election Procedures, governing the conduct of all Chapter elections, including the Scottish Single Transferable Vote method for delegate elections required by National DSA.

(b) **Delegations carried.** This Code gives effect to the election delegations of the bylaws. Article IX, Section 8 provides that all Chapter elections, including officer, Harassment Grievance Officer, and delegate elections, are administered under this Code, and that where National DSA provides or requires a national service or system for the conduct of officer or delegate elections, the Chapter uses it on the terms this Code provides. Article IX, Section 1 assigns to this Code the method for multi-seat elections, including the election filling the two Co-Chair seats. Article IX, Section 3 assigns to this Code the manner of making, submitting, and publishing nominations. Article IX, Section 7 assigns to this Code the conduct of the first election of a newly created, renamed, or modified position. Article IX, Section 9 assigns to this Code the credentialing of voters, which may not reduce the thirty-day eligibility requirement of that Section. Article X, Section 4 assigns to this Code any additional requirements for State and Regional delegate elections, and Article X, Section 5 assigns to this Code the timing and scheduling of delegate elections, the order in which alternates serve, and all further mechanics, including the counting procedure, tie-break rules, and any technology used. Article XIII, Section 4 assigns to this Code the term-limit, ballot-method, and special-election nomination mechanics for Harassment Grievance Officers.

(c) **Boundary.** This Code owns the conduct of elections and nothing else. It does not define the offices or their duties, which are governed by Article IV, Article XIII, and the Rule on Officer Operating Procedures, and it does not govern the logistics or order of business of the Annual Convention, which are governed by the Rule on Annual Convention Procedures under Article VII, Section 7.

(d) **Tier and subordination.** This Code is a Tier 2 Code. It binds the membership, the officers, the Steering Committee, and every subsidiary body under Article VIII. It does not and cannot reduce any duty, power, protection, threshold, quorum, or eligibility floor set in the bylaws or in the national documents. Where this Code and a higher tier conflict, the higher tier controls (Article XVIII, Section 2), and the national documents control over the Chapter (Article II, Section 2).

(e) **Application.** This Code governs Chapter elections conducted on or after its effective date. Until it takes effect, existing Chapter election practice continues under the savings clause at Article XVIII, Section 7, which names this Code among the load-bearing instruments.

Section 2. Definitions

For purposes of this Code:

(a) **Member** and **member in good standing** have the meanings given in Article III, Sections 1 and 2.

(b) **Officer** means one of the five elected officers of the Chapter, namely the two Co-Chairs, the Secretary, the Treasurer, and the Steward, the only positions to which the word refers in the bylaws (Article V, Section 1).

(c) **Harassment Grievance Officer** or **HGO** means a person serving in that office under Article XIII.

(d) **Delegate** and **alternate** mean a delegate or alternate of the Chapter to the National Convention or to a State or Regional body under Article X.

(e) **Chapter election** means an election of officers, Harassment Grievance Officers, or delegates and alternates, including a special or vacancy election for any of those positions conducted by the membership. Article IX, Section 8 places all Chapter elections under this Code. For a special or vacancy election under Article XI, Sections 3 and 4, this Code governs the conduct of the election itself as a Chapter election, while the surrounding vacancy process, including interim appointment, confirmation, and the convening and scheduling of the meeting, is the mechanics and detail those Sections assign to the Rule on Officer Operating Procedures.

(f) **General Meeting**, **Annual Convention**, **Special Meeting**, and **Meeting** have the meanings given in Article I, Section 4(e) and (g).

(g) **Moderator** means the neutral member who administers a Chapter election under Section 7. The Moderator is not an officer of the Chapter within the meaning of Article V, Section 1.

(h) **Teller Committee** means the members appointed under Section 7 to verify the count of ballots.

(i) **Ranked ballot** means a secret ballot on which a voter ranks candidates in order of preference and is not required to rank every candidate.

(j) **Instant-runoff voting** means single-winner single transferable voting, in which the candidate with the fewest first preferences is eliminated and that candidate's ballots transfer to the next ranked continuing candidate, repeating until one candidate holds a majority of the continuing ballots.

(k) **Single transferable vote** or **Scottish STV** means multi-winner ranked-choice voting using the Droop quota and the surplus-transfer and elimination rules of the Scottish Single Transferable Vote method, the method National DSA requires for delegate elections (Article XVIII, Section 4(a)).

(l) **Bernie's Coin Flip** means the determination by lot described in Section 11.

Section 3. Scope

(a) **Elections covered.** This Code governs:

1. The annual election of the five officers at the Annual Convention (Article IX, Section 1; Article VII, Section 3).
2. The election of Harassment Grievance Officers (Article IX, Section 2; Article XIII, Section 4).
3. The election of delegates and alternates to the National Convention and to State and Regional bodies (Article X).
4. Special and vacancy elections for officer positions conducted by the membership under Article XI, Sections 3 and 4, and Harassment Grievance Officer special elections under Article XIII, Section 4.

(b) **Elections and votes not covered.** This Code does not govern votes on motions, including those styled as Resolutions under Article XVIII, Section 9, or on bylaws amendments, endorsements, or other questions that are not the election of a person; those are decided under Articles VI, XIV, XVIII, and XX and the parliamentary authority adopted in Article XIX. It does not govern the selection of subsidiary body chairs, which is internal governance of each Branch, Standing Committee, Working Group, and Youth Section under Article VIII, Section 5 and the Rule on Subsidiary Body Operating Procedures. It does not govern any election National DSA itself conducts, such as a national member ballot.

Section 4. Election Calendar and Forums

(a) **Officers and Harassment Grievance Officers.** The five officers and the Harassment Grievance Officers are elected at the Annual Convention each July (Article VII, Section 3; Article IX, Section 1; Article XIII, Section 4). The Annual Convention convenes at the ordinary quorum and proceeds at that quorum to the election of officers and Harassment Grievance Officers (Article VII, Section 5); no higher quorum attaches to an election.

(b) **Delegate election timing and scheduling.** The Annual Convention is the default forum for delegate elections in National Convention years (Article VII, Section 4; Article X, Section 1). If the national schedule requires elections outside the Annual Convention window, the Steering Committee shall call a Special Meeting for that purpose. That Special Meeting is convened on the fourteen days written notice the Rule on Meeting Operating Procedures, Section 5(c) sets for a delegate-election Special Meeting under Article VII, Section 4. This Code sets the timing and scheduling of the delegate election under the delegation of Article X, Section 5 and carries the meeting-notice period by reference to that Rule, which the bylaws make the source of the notice

for such a Special Meeting under Article VI, Section 4, rather than enacting a period of its own. A National Convention delegate election is held only after the National Political Committee has apportioned delegates, and no more than four months and no less than forty-five days before the opening of the National Convention (national Constitution, Article V, Sections 4 and 5). Elections for delegates to a State or Regional body are held on the schedule that body requires, at a General Meeting or at a Special Meeting on the fourteen days written notice the Rule on Meeting Operating Procedures, Section 5(c) sets for a delegate-election Special Meeting (Article X, Section 4), carried by reference to that Rule rather than enacted here.

(c) **Special and vacancy elections.** A special or vacancy election for an officer position is held at the meeting and on the notice Article XI, Sections 3 and 4 require, and a Harassment Grievance Officer special election is held at the next General Meeting after the mid-term vacancy, on notice stating the vacancy and the special election (Article XIII, Section 4). The quorum for any such election is the quorum the bylaws set for that meeting; this Code does not alter it.

Section 5. Nominations

(a) **Window and manner.** Nominations for each regular annual election to a Chapter position, including Harassment Grievance Officer, open thirty days before the election and close five days before, and members may nominate themselves (Article IX, Section 3). Delegate nominations follow the same window unless the national schedule requires a compressed one, in which case the Steering Committee sets and publishes the nomination window with the notice of the election, as close to the ordinary window as the national schedule permits. Within the window, a nomination may be made orally at a Meeting of the Chapter or submitted in writing to the Secretary, including by email to the Secretary's address of record. A nomination of another member takes effect only on that member's acceptance, given orally or in writing by the close of nominations.

(b) **Publication.** The Secretary publishes the received nominations to the membership promptly, and publishes the complete candidate list when nominations close (Article IX, Section 3).

(c) **Floor nominations.** Nominations are taken from the floor only in the four cases stated in this subsection. The bylaws themselves permit the first two; the third and fourth are permitted by this Code under authority the bylaws delegate to it, as each item states:

1. For an officer or Harassment Grievance Officer position that received no candidate during the nomination period, which is opened for floor nominations at the Annual Convention before adjournment (Article IX, Section 6).
2. For the first election of a newly created, renamed, or modified position, at the meeting where the position takes effect, including the meeting at which the second approving vote on the creating amendment occurs (Article IX, Section 7; Article XX, Section 4). This subsection

applies only to that first election, including self-nominations from the floor; subsequent elections follow the ordinary window.

3. For a Harassment Grievance Officer special election, for which this Code, exercising the special-election nomination mechanics Article XIII, Section 4 assigns to it, disapplies the nomination window of Article IX, Section 3; nominations, including self-nominations, may be made from the floor at the meeting or in writing to the Secretary in advance.
4. For an officer floor election after a denied confirmation (Article XI, Section 4) and for a direct election at a Special Meeting convened under Article XI, Section 3, at which this Code, administering the election under Article IX, Section 8, permits nominations, including self-nominations, from the floor; the surrounding vacancy process remains governed by Article XI and the Rule on Officer Operating Procedures, as Section 2(e) states.

(d) **Confirmation of eligibility.** The Secretary confirms each nominee's eligibility under Section 8 at the close of nominations, and confirms the eligibility of a floor nominee before the ballot.

Section 6. Candidate Statements

(a) **Written statements.** A nominee may submit a written statement in support of their candidacy of up to [**500 words**] by the close of nominations. The Secretary publishes the written statements to the membership at least [**5 days**] before the election, or with the notice of the meeting where a compressed schedule applies.

(b) **Oral statements.** A nominee may make an oral statement at the election meeting of up to [**3 minutes**]. The Moderator allots equal time to each candidate for the same position and enforces the limit impartially. A candidate nominated from the floor receives the same time.

Section 7. Election Administration and the Moderator

(a) **The Moderator model.** Each Chapter election is administered by a Moderator, a neutral member in good standing who receives any floor nominations, supervises the balloting, rules on the validity of ballots, directs and verifies the count, announces the result, certifies the result in writing to the Secretary, and delivers the election records under Section 13. The Moderator acts impartially and is not an officer of the Chapter within the meaning of Article V, Section 1. This Code is the primary source of the Chapter's election-administration model; the bylaws fix the floor that no candidate may administer their own election (Article IX, Section 4; Article X, Section 3), and this Section supplies the rest.

(b) **No self-administration.** No person who is a candidate in an election may serve as Moderator for that election, or count or rule on the validity of any ballot in it (Article IX, Section 4; Article X, Section 3).

(c) **Membership election of the Moderator.** Before the first contested Chapter election at any meeting, the membership elects a Moderator by majority vote, choosing a member in good standing who is not a candidate in any Chapter election at that meeting. The Steering Committee may propose a nominee for Moderator in the notice of the meeting, but the membership elects the Moderator, and the membership may replace its Moderator at any time by majority vote. The same Moderator administers every Chapter election held at that meeting, so that one neutral person conducts the whole slate of elections.

(d) **Fallback designation.** If no Moderator has been elected when an election is to begin, or the elected Moderator is unavailable, the membership designates a Moderator for that election from among the members present who are not candidates. An uncontested election that will be filled by acclamation may be conducted by the presiding officer if the presiding officer is not a candidate for the position.

(e) **Recusal.** If the person serving as Moderator becomes a candidate in an election they would administer, that person steps aside for that election, and a substitute is chosen under subsection (c) or (d).

(f) **Teller Committee.** The Moderator appoints a Teller Committee of [**3**] members in good standing, none of whom is a candidate in the election being counted, to verify the count, whether the count is produced electronically or by hand.

(g) **National administration.** Where a national election service or system conducts the balloting or the count under Section 10(d), the Moderator retains the chapter-side duties of this Section: receiving floor nominations, supervising the chapter's conduct of the election, verifying and announcing the result the service reports, certifying it to the Secretary, and preserving the records.

Section 8. Voter Eligibility and Credentialing

(a) **Officer and Harassment Grievance Officer elections.** Only a member who is in good standing of the Chapter and of National DSA, and who has been in good standing for at least thirty days before the day of the election, may vote in an election for Chapter office or Harassment Grievance Officer (Article IX, Section 9). This Code may not and does not reduce that thirty-day requirement, which applies at the Annual Convention and at every special and vacancy election alike.

(b) **Delegate elections.** Only a member who has been in good standing for at least thirty days before the day of the election may vote in a delegate election (Article IX, Section 9). The Secretary certifies the roster of members eligible to vote in a delegate election as of the thirty-day cutoff, reconciled with the National DSA membership roster, and that certified roster is the delegate-election voter roll. In addition, only a member fully paid up in dues at the time of the

election may vote in a National Convention delegate election (national Constitution, Article V, Section 4); that national qualification applies alongside the thirty-day requirement, and the Secretary verifies dues-paid status as of the date of the election in coordination with the national office, together with any other voter qualification the national documents impose.

(c) **Credentialing.** The Secretary, in coordination with the Steward, verifies that every voter in an election held at the Annual Convention is a member in good standing of National DSA and of the Chapter as of the day of the Convention and meets the thirty-day requirement of Article IX, Section 9 (Article VII, Section 6). For an election held at any other meeting, the Secretary applies the same verification for that election. The certified list of eligible voters is an election record under Section 13.

(d) **Candidate eligibility.** Candidate eligibility is fixed by the bylaws, and this Code applies it without enlargement or reduction:

1. **Officers.** Any member who has been in good standing of National DSA and of the Chapter for at least thirty days before the election may stand for Chapter office, and no member may hold more than one Chapter office at the same time (Article IV, Section 2).
2. **Harassment Grievance Officers.** Any member who has been in good standing of the Chapter and of National DSA for at least thirty days before the election or appointment may serve, and a Harassment Grievance Officer may not simultaneously serve as an elected officer; a person holding both positions must resign one within fourteen days (Article XIII, Section 3).
3. **Delegates and alternates.** Any member in good standing of both National DSA and the Chapter as of the day of the election may stand for delegate or alternate (Article X, Section 2). A National Convention delegate or alternate candidate must also be fully paid up in dues at the time of the election (national Constitution, Article V, Section 4), and the Secretary verifies that qualification, and any other candidate qualification the national documents impose, at the close of nominations.

(e) **One vote and no proxy.** Each eligible voter has one vote, whether present in person or by remote participation, and proxy voting is not permitted (Article VI, Section 6(a) and (b)).

Section 9. Method of Election

(a) **Uncontested elections.** Where the number of candidates for a position or class of positions is equal to or fewer than the number of seats, the candidate or candidates are declared elected by acclamation without a ballot (Article IX, Section 4).

(b) **Contested single-seat elections.** A contested election filling a single seat, including the Secretary, the Treasurer, the Steward, and a single Harassment Grievance Officer seat, is decided by majority vote by instant-runoff voting on a secret ranked ballot. A candidate who receives a majority of the continuing ballots in the final round is elected by majority vote within the

meaning of the bylaws, and an exhausted ballot is not counted in that round (Article IX, Section 5).

(c) **Contested multi-seat elections.** A contested election filling more than one seat at the same election is decided by Scottish Single Transferable Vote on a secret ranked ballot, using the Droop quota and filling all seats. This is the method this Code prescribes for multi-seat elections under Article IX, Section 1, and it governs the election filling the two Co-Chair seats, which are filled as a single two-winner election because the bylaws treat the Co-Chairs as co-equal and do not distinguish between the seats, and any election filling two or more Harassment Grievance Officer seats, under Article XIII, Section 4 applying the ballot method this Code prescribes and the conduct rules of Article IX. A Harassment Grievance Officer election therefore proceeds by majority vote on a ranked ballot where a single seat is filled, and by the single transferable vote method where two or more seats are filled at the same election.

(d) **Delegate elections and alternates.** Delegate elections are conducted by Scottish Single Transferable Vote by secret ballot, the method the national Constitution and Bylaws require, which the Chapter has no discretion to change (Article X, Section 3; Article XVIII, Section 4(a)). The candidates not elected as delegates are ranked as alternates in the order produced by the count. Alternates serve in the order of their election rank when a delegate is unable to attend or vote at the National Convention, and the same order governs service for a State or Regional body unless that body directs otherwise (Article X, Sections 4 and 5).

(e) **Single ranked method.** The Chapter decides every contested Chapter election by a single ranked single transferable vote: instant-runoff voting for one seat and multi-winner Scottish STV for more than one seat. The Chapter does not hold a separate second runoff ballot, because the ranked ballot resolves the election on a single count.

(f) **Secret ballot.** Every contested Chapter election is conducted by secret ballot (Article IX, Section 4; Article VII, Section 6; Article X, Section 3). A member's right to demand a division of the assembly or a roll call vote on a question other than a contested election is governed by the Rule on Annual Convention Procedures and the parliamentary authority, not by this Code.

Section 10. Ballots, Hybrid Meetings, and Electronic Voting

(a) **Hybrid Meetings.** Every Meeting at which a Chapter election is held is a hybrid meeting offering remote participation by right, and a member present by remote participation votes by electronic means on the same questions, by the same recorded method, and with the same effect as a member present in person (Article VI, Section 6(b)). The procedures for verifying the identity of remote members and counting their presence and votes are governed by the Rule on Officer Operating Procedures under Article VI, Section 6(d), and accommodations are governed by the Rule on Meeting Accessibility and Accommodations under Article VI, Section 6(c); this Code sets neither.

(b) **Electronic ballot requirements.** A contested election is conducted by a secret electronic ballot through an approved electronic voting system, so that in-person and remote voters cast the same ballot. The approved system shall:

1. Run Scottish Single Transferable Vote for delegate and other multi-seat elections, and instant-runoff voting for single-seat elections, as Section 9 requires;
2. Preserve the secrecy of each ballot;
3. Ensure one ballot per eligible voter on the certified voter list, prevent double voting, and permit no proxy voting; and
4. Permit the publication of de-identified ballot data after the election.

If the electronic system fails during an election and cannot be restored at the meeting, the Moderator conducts the ballot by paper secret ballot for voters present in person and reschedules or holds open the ballot as needed so that every credentialed remote voter can cast the same secret ballot before the count, preserving the guarantee of Article VI, Section 6(b).

(c) **Voting system.** The secret electronic ballot for a contested election is cast and counted through an approved ranked-ballot voting system, with the recommended default [**OpaVote**], which casts and counts secret ranked ballots by Scottish Single Transferable Vote and by instant-runoff voting. The system may change without amending this Code provided the requirements of subsection (b) continue to be met. The specific system and its secrecy and integrity controls are governed by the Information Security Code under Article XVII, Section 3, consistent with this Section. The platform on which the hybrid meeting itself is convened is governed by the Rule on Officer Operating Procedures under Article VI, Section 6(d) and is not set by this Code.

(d) **National election service or system.** Where National DSA provides or requires a national service or system for the conduct of officer or delegate elections, the Chapter uses it, as Article IX, Section 8 directs, and this subsection states the terms of that use, together with Article X, Section 5 for delegate-election technology:

1. Where National DSA requires the service or system for an election, its use is mandatory for that election and displaces subsection (c) as to the platform, and any conflict between this Code and the national service's required procedure is resolved in favor of the national requirement (Article II, Section 2). The guarantees of subsection (b)3, including one ballot per eligible voter and no proxy voting, are not displaced; the no-proxy rule is a bylaws floor under Article VI, Section 6(a) that this Code cannot reduce.
2. Where National DSA provides but does not require the service or system, the Steering Committee may adopt it for an election, or the membership may direct its use, provided the requirements of subsection (b) are met.
3. In either case, the Chapter retains its own credentialing under Section 8, and the Moderator retains the chapter-side duties stated in Section 7(g); the Secretary transmits the certified

voter list to the service in the form it requires and receives the reported result into the election record.

4. If a required national service cannot run a method Section 9 prescribes for a chapter-internal election, the national requirement controls for the elections National DSA requires it for, and the Chapter conducts its other elections under subsections (b) and (c).

(e) **Transparency.** After each ranked election, the Moderator publishes the de-identified ballot data and the round-by-round result to the membership so that members may verify the count.

(f) **Ballot integrity.** A ranked ballot need not rank every candidate. Spoiled, incomplete, or improperly marked ballots are handled under the stated rules of the approved system, and the Moderator rules on any ballot the system refers for human judgment.

Section 11. Bernie's Coin Flip

(a) **Application.** Article X, Section 5 assigns tie-break rules to this Code. Where the counting method's own tie-break, which compares the candidates' standing at earlier rounds, does not resolve a tie, whether for elimination, for the last seat, or for the order of alternates, the tie is broken by lot, called Bernie's Coin Flip.

(b) **Conduct.** Bernie's Coin Flip is conducted by the Moderator in the presence of the tied candidates or their representatives, by a coin toss for a tie between two candidates or a random draw for a tie among three or more, and is recorded in the election record.

Section 12. Harassment Grievance Officer Terms and Term Limit

(a) **Term boundary.** Each Harassment Grievance Officer serves a one-year term beginning August 1 and ending July 31 of the following year, or until a successor is elected or appointed (Article XIII, Section 4). A Harassment Grievance Officer elected at a special election under Article XIII, Section 4 takes office on election and serves the balance of the unexpired term.

(b) **Term limit.** No member may serve more than three consecutive full terms as a Harassment Grievance Officer. A member who has served three consecutive full terms is not eligible for election or appointment to the immediately following term, and becomes eligible again after at least one full term out of the role. Service as an Acting Harassment Grievance Officer, or service of the balance of a term following a special election, is not a full term for purposes of this limit. This subsection is the term-limit mechanic Article XIII, Section 4 assigns to this Code; it limits consecutive service only and is not an eligibility floor of the bylaws.

Section 13. Election Records

(a) **Records preserved.** The Moderator preserves and delivers to the Secretary the nomination records, the certified list of eligible voters, the ballots or the de-identified electronic ballot data, the round-by-round tally, the certified result, the candidate statements, the record of any determination by lot, and any challenge record.

(b) **Custody.** Election records are held by the Secretary as the officer responsible for the Chapter's governance records (Article IV, Section 5), except that where the Secretary is a candidate in a challenged election or the subject of a challenge to it, the records of that election are held by a Co-Chair until the challenge is resolved.

(c) **Retention.** Retention and disposition periods for election working records, including the de-identified ballot data, are governed by the Document Retention Code under Article XVII, Section 3; this Code carries them by reference and sets none of its own. The certified result of each election and the resulting officer and Harassment Grievance Officer slate are permanent governance records of the Chapter and are not subject to disposition.

Section 14. Election Challenges

(a) **Standing.** A candidate in the affected election, or any member in good standing, may challenge the conduct or the result of a Chapter election.

(b) **Filing.** A challenge is made in writing to the Secretary, or to a Co-Chair if the Secretary is a candidate in the challenged election or served as its Moderator, within [**7 days**] of the announced result. The challenge states the specific irregularity and the remedy sought.

(c) **Forum.** A challenge is decided as follows:

1. A challenge to an officer or Harassment Grievance Officer election is decided by the membership at the next General Meeting or at a Special Meeting, because the Steering Committee is ordinarily composed of candidates in those elections and no body stands above a properly convened Meeting of the Chapter (Article VI, Section 1).
2. A challenge to a delegate election is decided by the Steering Committee, with any member who was a candidate or the Moderator in the challenged election recused. If a non-conflicted majority of the Steering Committee cannot be assembled, the membership decides.

(d) **Decision.** The deciding body decides the challenge within [**14 days**] of filing or, where the membership is the forum, at the next General Meeting.

(e) **Remedies.** The remedies are limited to a recount or re-tally, a partial or full re-run of the affected election, or denial of the challenge. The deciding body does not impose discipline through the challenge process.

(f) **Office held pending challenge.** A person declared elected takes and holds the position pending the resolution of a challenge, unless the deciding body orders otherwise, so that the position does not fall vacant during the challenge.

(g) **Appeal.** The disposition of a challenge decided by the Steering Committee may be appealed to the membership at the next General Meeting, which decides by majority vote (Article VI, Section 1).

(h) **Misconduct routed to discipline.** A finding that an election irregularity involved conduct prohibited by the Chapter Code of Conduct or the National DSA Code of Conduct, such as falsification or destruction of records, impersonation, or non-democratic interference, is referred to the disciplinary process under Article XII, the Chapter Code of Conduct, and the Discipline Code; it is not adjudicated as discipline within this challenge process. A report of organizational wrongdoing may also be made under the Whistleblower Code, which is a separate channel from this challenge process.

(i) **Protected activity preserved.** Forming or supporting a slate or caucus, advocating for or against candidates, criticizing incumbents, and other democratic political activity are protected under Article III, Section 4 and are never an election irregularity or a ground for a challenge or for discipline.

Section 15. Demographic Reflection

(a) **Aspiration.** Consistent with the Chapter's purpose under Article II, Section 1, the Chapter aspires to have its officers and leadership reflect the demographics of the membership and the larger community, encourages members of underrepresented groups to seek nomination, and supports broad and inclusive participation in candidacy and in voting.

(b) **No quota or preference.** This aspiration imposes no quota, set-aside, reserved seat, weighting, or preference of any kind. It does not affect any person's eligibility to be nominated, to stand as a candidate, or to vote; it does not affect the design of any ballot; and it does not affect the counting of any election or the determination of any winner. No candidate is advantaged or disadvantaged, and no seat is reserved or restricted, on the basis of race, color, ethnicity, national origin, sex, gender, gender identity or expression, sexual orientation, age, religion, disability, or any other protected characteristic.

(c) **Construction.** This Section is a statement of aspiration and encouragement only and shall not be construed to create or to require any demographic preference, balance requirement, or outcome.

Section 16. Relationship to Other Governance Documents

(a) **Documents read together.** This Code is read together with Articles VI, VII, IX, X, XI, and XIII of the bylaws; the Rule on Annual Convention Procedures, which governs the Annual Convention's logistics, order of business, and the conduct of non-election votes; the Rule on Officer Operating Procedures, which governs officer duties, the remote-participation verification and counting mechanics under Article VI, Section 6(d), and the vacancy-process mechanics and detail under Article XI, Sections 3 and 4, while this Code governs the conduct of the special or vacancy election itself, as Section 2(e) states; the Rule on Meeting Accessibility and Accommodations under Article VI, Section 6(c); the Rule on Subsidiary Body Operating Procedures, which governs subsidiary body chair selection under Article VIII, Section 5; the Chapter Code of Conduct and the Discipline Code, which state the conduct standards and the discipline process that apply to election-related misconduct under Article XII; the Whistleblower Code; the Conflict of Interest Code, which addresses a covered person's loyalty conflicts and is distinct from the administration of Chapter elections; the Information Security Code, which governs the technical controls for the voting platform under Article XVII, Section 3; and the Document Retention Code, which sets the retention periods Section 13 carries. Where another instrument governs a matter referred to in this Code, that instrument controls the detail of that matter, subject to the supremacy rules of Article XVIII, Section 2.

(b) **Reporting the result.** The Secretary reports every officer election result, appointment, resignation, and removal to National DSA within thirty days of the election or change, as Article XI, Section 2 and the Compliance Code provide. This Code produces the certified result and does not restate the reporting duty.

Section 17. Amendment

This Code is amended or rescinded by the same procedure by which it is adopted: over two consecutive General Meetings under Article XVIII, Section 1(b), the first advancing the proposal by majority vote at the ordinary quorum and the second taking the final vote at the higher quorum by supermajority, each on fourteen days written notice, as the heightened action listed at Article VI, Section 5(b)(2). As a reserved Code named at Article XVIII, Section 4(a) and a load-bearing instrument named at Article XVIII, Section 7, this Code may not be rescinded unless a replacement on the same subject is adopted at the same meeting.

Drafting notes

These notes are not part of the adopted Code. They record the basis for choices made in the draft and the items to confirm on adoption.

1. **Marked blanks to confirm on adoption.** The values carried as marked blanks are: candidate statement length, [500 words] (Section 6(a)); publication lead time for written statements, [5 days] (Section 6(a)); oral statement time, [3 minutes] (Section 6(b)); Teller Committee size, [3] (Section 7(f)); the ranked-election platform, recommended default [OpaVote] (Section 10(c)); the challenge filing window, [7 days] (Section 14(b)); and the challenge decision window, [14 days] (Section 14(d)). The membership confirms these on the adopting vote. Election-record retention periods are not among them; they are set by the Document Retention Code and carried by reference (Section 13(c)).
2. **Content this Code holds for the bylaws.** The bylaws deleted three provisions trusting this Code to carry them, and this draft carries each at its stated home: delegate-election timing and scheduling, with the Annual Convention default forum and the Special Meeting fallback whose fourteen days written notice this Code carries by reference to the Rule on Meeting Operating Procedures, Section 5(c), at Section 4(b); the Election Moderator model at Section 7, where the membership-election model governs and the bylaws keep only the no-self-administration rule at Article IX, Section 4; and the alternate rank order at Section 9(d). The bylaws also point here for the nomination manner and publication mechanics (Section 5(a) and (b)), the first-election floor-nomination mechanics including the second-approving-vote meeting (Section 5(c)2), and the Harassment Grievance Officer ballot-method, term-boundary, term-limit, and special-election nomination mechanics (Sections 5(c)3, 9(c), and 12).
3. **Single ranked method for all contested elections.** National DSA requires Scottish Single Transferable Vote for chapter delegate elections, and the Chapter has no discretion over that method (Article X, Section 3; Article XVIII, Section 4(a)). For its own offices the Chapter chooses one consistent family: instant-runoff voting for a single seat, which produces the majority winner Article IX, Section 5 contemplates, and Scottish STV for any multi-seat election, which Article IX, Section 1 lets this Code prescribe for the two Co-Chair seats and Article XIII, Section 4 lets it prescribe for multi-seat Harassment Grievance Officer elections. One method family, one ballot, no second runoff round.
4. **The Moderator.** The membership elects the Moderator for all Chapter elections. The bylaws assign no administrator for any election and delegate all administration to this Code (Article IX, Section 8), so a single uniform model is now possible; the fallback designation from the floor (Section 7(d)) preserves the membership's control when no Moderator has been chosen.

5. **Subsidiary body chairs.** Chair selection is internal governance of each subsidiary body under Article VIII, Section 5 and belongs to the Rule on Subsidiary Body Operating Procedures. This Code covers officer, Harassment Grievance Officer, and delegate elections only, matching its reserved scope; the earlier practice of supplying chair-election ballot mechanics from this Code ends, and that Rule should state the chair-selection mechanics itself.
6. **Demographic reflection.** The aspiration is retained at Code level, anchored to the Chapter's purpose (Article II, Section 1), with the express no-quota, no-preference disclaimers. It creates no eligibility rule, ballot rule, or counting rule.